WORKING MONOGRAPH EXCERPT & RESEARCH SAMPLE

The Right to Hesitate: Epistemic Friction in High-Stakes AI

Translating Pragmatic Discourse Theory into Deterministic Institutional Release Governance

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ABSTRACT — As frontier language models move from conversational drafting into institutional decision pipelines—across litigation, regulatory supervision, and capital allocation—their primary failure mode shifts from overt fabrication to *fluent epistemic drift*. Drawing on my working manuscript, *The Right to Hesitate*, this excerpt argues that high-consequence workflows cannot rely on post-hoc policy principles or single-metric preference scores. Because probabilistic generation smooths speaker doubt, evidentiary contestation, and jurisdictional scope into confident prose, accountable oversight requires formal architectural hesitation gates where machine fluency yields to cryptographically bound human judgment before irreversible downstream action occurs.

I. The Pragmatics of Fluent Drift

In consumer software, linguistic fluency is routinely treated as a proxy for reliability. Inside record-bound institutions—civil courts, diplomatic channels, and compliance operations—language performs a stricter pragmatic task: it indexes *who* asserts a claim, under what evidentiary threshold, and with what degree of reservation. Autoregressive models optimize token transitions that flatten hedged testimony, disputed allegations, and narrow holdings into declarative certainty. What reads to a casual user as crisp summarization operates, within an evidentiary record, as unannounced epistemic compression.

The institutional consequences of this compression are sharply asymmetric. Under Federal Rule of Civil Procedure 11, presenting a filing certifies that factual contentions have evidentiary support after an inquiry reasonable under the circumstances. A model-generated case summary that preserves party names, dates, and dispositions while dropping a witness's explicit doubt—or elevating a litigant's contested assertion into an undisturbed judicial finding—introduces immediate sanctions risk. Fluency does not soften this failure mode; fluency conceals it, lowering human vigilance precisely where adversarial scrutiny is highest.

II. Architectural Hesitation Against Scalar Alignment

Prevailing model evaluation frameworks rely heavily on composite preference rankings and single-score leaderboards, allowing stylistic polish and surface recall to mask localized attribution failures. *The Right to Hesitate* advances a countervailing design principle: hesitation must be engineered as a structural property of the workflow rather than requested politely from a probabilistic prompt. Wherever speaker stance, cross-record contestation, or scope boundaries remain unresolved, the pipeline must refuse silent continuation and route the artifact to explicit human adjudication.

Properly structured, institutional hesitation accelerates delivery rather than obstructing it. Managing civil litigation intake, motion records, and case-review workflows alongside trial counsel since September 2023 demonstrated why unstructured AI adoption stalls: attorneys forced to distrust subtle attribution shifts end up re-verifying entire source packets line by line. Separating narrative synthesis from qualification verification—via two-stage prompt templates, a human-in-the-loop checklist, and FRCP Rule 11 staff training—reduced attorney verification rework by approximately 35% across sampled review packets by concentrating human attention onto bounded epistemic checkpoints.

III. Empirical Signal: Civil-Opinion Pilot and Synthetic Fault Benchmarks

To test whether pragmatic failure modes can be isolated systematically without triggering false-positive alert fatigue, I paired an exploratory five-opinion, ten-summary legal evaluation pilot (RL-5P-v0.2) with a from-scratch Python and JavaScript verification architecture, the *Reality Ledger* (RL-BASE-1.0). The table below summarizes empirical and benchmark findings across both layers.

Evaluation Dimension	Validation Environment	Observed Outcome & Operational Signal
Attribution & Scope Drift	RL-5P-v0.2 Legal Pilot	Surfaced subtle attribution, pronoun, or scope drift in 8/10 fluent summaries despite intact surface facts.
Pragmatic Nuance Retention	RL-5P-v0.2 Structured Rubric	Preserved 4/4 applicable speaker-doubt instances and 4/4 cross-record disputes, with 0/5 unsupported relational inferences.
Verification Rework Impact	Live Civil Litigation Ops	Cut attorney verification rework by approximately 35% across sampled review packets via two-stage prompts and checklists.
Critical Fault Recall	RL-BASE-1.0 Benchmark	Detected 8/8 intended critical faults while flagging 0/8 clean negative controls across a 16-case synthetic benchmark.
Release-Routing Integrity	RL-BASE-1.0 Test Suite	Validated across 166 automated tests and 3,378 JavaScript-to-Python deterministic routing parity checks.

The central diagnostic lesson of RL-5P-v0.2 lies in the divergence between surface factuality and pragmatic fidelity: 8/10 summaries introduced attribution or scope drift that standard entity-matching rubrics overlook because every cited party and statutory provision appeared in the source opinion. Isolating speaker doubt, cross-record disputes, and unsupported relational inferences turns vague mistrust of model prose into inspectable defect categories.

IV. Operationalizing Hesitation as Release Infrastructure

Governance frameworks—including the EU Artificial Intelligence Act's human-oversight mandates, the NIST AI Risk Management Framework, and ISO/IEC 42001—require meaningful human control, yet rarely specify how software pipelines prevent rubber-stamping under production time pressure. *Reality Ledger* bridges that gap through schema-bound retrieval handoffs, Python manifest inspection, five non-compensatory release circuit breakers, and SHA-256-bound human adjudication inside a self-contained Reviewer Release Workbench. Because release gates are non-compensatory, high fluency scores never override a failed provenance or attribution check.

As frontier laboratories and global enterprises deploy multi-step reasoning agents across legal, regulatory, and public-sector infrastructure, oversight cannot depend on auditing sprawling transcripts after downstream harm occurs. Institutionalizing the right to hesitate—designing deterministic intervals where automated fluency pauses, surfaces contested claims, and binds human sign-off cryptographically—converts ethical restraint from an aspirational policy statement into verifiable operational architecture.